

BC681863 BC681863

County: los-angeles

Division: Civil Law and Motion

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Case Number: BC681863 Hearing Date: June 25, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

BC681863

CHAI

GROUP LLC VS CITY OF LOS ANGELES ET AL

June

25, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT CITY OF LOS ANGELES' MOTION TO CHALLENGE THE GOOD FAITH SETTLEMENT
BETWEEN SOIL ENGINEERING CONSTRUCTION, INC.'S AND PLAINTIFF CHAI GROUP, LLC,
AND CROSS-COMPLAINANTS JOHN AND LINDA BEKEREDJIAN.

RULING:

The Court denies the Motion
to Challenge the Good Faith Settlement.

The Court finds that the
settlement was made in good faith.

I.

BACKGROUND

In an Amended Complaint,
filed July 5, 2019, CHAI GROUP, LLC (Plaintiff) alleges that it sustained
property damage in 2027, as to some hillside properties in the vicinity of Laurel
Canyon Boulevard in Los Angeles, as a result of the landslide involving
contributing responsibilities of CITY OF LOS ANGELES, JOHN BEKERDJIAN, LINDA
BEKERDJIAN, and SOIL ENGINEERING CONSTRUCTION, INC. (Defendants),
including for previous slope remediation work.

Defendants HOVANES JOHN
BEKEREDJIAN and LINDA BEKEREDJIAN filed a Cross-Complaint asserting claims for
property damage, indemnity, and related relief.

On May 19, 2026, CITY OF
LOS ANGELES (Moving Defendant) filed the Motion to Challenge the Good Faith
Settlement Between SOIL ENGINEERING CONSTRUCTION, INC., Plaintiff CHAI GROUP,
LLC, and Cross-Complainants JOHN and LINDA BEKEREDJIAN.

In opposition, SOIL
ENGINEERING CONSTRUCTION, INC. (Opposing Defendant) advocates denying the
Motion, and instead finding a Good Faith Settlement, based upon counterarguments
such as that Moving Defendant did not file evidence that meets the burdens of
proof, whereas Opposing Defendant filed supportive proof.

II.

LEGAL STANDARD

In an action involving
allegations that parties are joint tortfeasors or co-obligors on contract debt,
“a settling party may give notice of settlement to all parties and to the

court, together with an application for determination of good faith settlement and a proposed order.” (Code Civ. Proc., § 877.6, subd. (a)(2).) “Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement.” (Ibid.)

The Tech-Bilt factors are:

A rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;

The amount paid in settlement;

A recognition that a settlor should pay less in settlement than if found liable after a trial;

The allocation of the settlement proceeds among plaintiffs;

The settlor's financial condition and insurance policy limits, if any; and

Evidence of any collusion, fraud, or tortious conduct between the settlor and the plaintiffs aimed at making the nonsettling parties pay more than their fair share.

(Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

Parties challenging the good faith nature of a settlement agreement have the burden to demonstrate that it lies so far “out of the ballpark” of the Tech-Bilt factors that it is inconsistent with the equitable objectives of the statute. (Nutrition Now, Inc. v. Superior Court (2003) 105 Cal.App.4th 209, 213-214.) “[A] defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be.” (Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865, 874 (Long Beach).) “[A]

disproportionately low settlement amount may be reasonable where the settling joint tortfeasor is relatively insolvent and uninsured or underinsured....” (Ibid., at p. 875.)

“The trial court is given broad discretion in deciding whether a settlement is in 'good faith' for purposes of section 877.6, and its decision may be reversed only upon a showing of abuse of discretion.” (TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal.App.4th 159, 165.) Judges’ have discretion in ruling upon a motion for good faith settlement, and the rulings must be made “in view of the equitable goals of the statute, in conformity with the spirit of the law and in a manner that serves the interests of justice”, and must serve the goals of “encouraging settlement among all interested parties” and “equitably allocating costs among multiple tortfeasors”, as opposed to allowing a party to obtain “protection from its indemnification obligation at bargain-basement prices.” (Long Beach, supra, 172 Cal.App.4th at pp. 873, 876.)

III.

ANALYSIS

Moving Defendant reasons that there is a woefully inadequate settlement meant to leave it potentially for the contracted remedial repairs to private property.

Opposing Defendant counterargues that Moving Defendant did not file evidence to support that Opposing Defendant’s remedial repair of an initial landslide had any effect, or that Moving Defendant’s work did not contribute to the landslide. Thus, it concludes that settling for policy limits of \$1,000,000 constitutes a good faith settlement. (See Scott Monroe Decl., filed 4/30/26. ¶ 11).

“[T]he determination whether the settlement was in good faith must be based on competent, admissible evidence.” (Brehm Communities v. Superior Court (2001) 88 Cal.App.4th 730, 736.) A determination of a good faith settlement must be supported by substantial evidence. (Norco Delivery Service, Inc. v. Owens Corning Fiberglas (1998) 64 Cal.App.4th 955, 962.)

The Court has read the

evidence filed by Moving Defendant and Opposing Defendant, and finds that Moving Defendant's proof is inconclusive, and speculative, as to whether Opposing Defendant contributed to the alleged property damages, and whether Moving Defendant lacks exposure to liability such that the settlement would lie so far "out of the ballpark" of Tech-Bilt factors, inconsistent with the statutory objectives.

For example, the Reply evidence consists of portions of Dr. Philip Shaller's deposition testimony, dated July 30, 2024 (Exhibit H) that primarily shows the deponent's lack of knowledge and inability to ascertain causation, and Chai Group LLC's PMK Moshe Zemach, dated October 23, 2023 (Exhibit I, p. 161) that demonstrates the deponent's lack of knowledge as to what planting and irrigation work Opposing Defendant had performed. So, Moving Defendant has filed substantial background information about parties involved in arrangements, but which at most is only speculative as to the relative faults of the parties.

In contrast, Opposing Defendant filed evidence, including expert opinions and evidentiary foundation, supporting a finding that it has caused none of the alleged damages.

IV.

CONCLUSION

Accordingly, the Court denies the Motion.